

Court No. - 34

Case :- WRIT - C No. - 75824 of 2005

Petitioner :- M/S Shree Jagdish Cement Pvt. Ltd. And Another

Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Seema Agrawal, Mayank Agrawal

Counsel for Respondent :- A.S.G. 2005/2696, A.N. Singh, W.H. Khan

Hon'ble Sudhir Agarwal, J.

Hon'ble Prabhat Chandra Tripathi, J.

1. Called in revised. None appeared to press the writ petition. In the circumstances, we ourselves have perused the record.

2. By means of this writ petition, petitioner has sought following reliefs:-

"(i) Issue a writ, order or direction in the nature of certiorari quashing the demand notice dated 08.07.2005 demanding additional security from the petitioner amounting to Rs. 42,23,301/- as contained in Annexure no. -5 to the writ petition.

(ii) Issue a writ, order or direction in the nature of certiorari quashing the clarifactory letter dated 11.02.2005 issued by the Ministry of Power Annexure no. 6 to the writ petition.

(iii) Issue a writ, order or direction in the nature of mandamus declaring clause 4.20 of the U.P. Electricity Supply Code, 2005 ultrar vires and as being inconsistent with the provisions of the Electricity Act, 2003 as well as arbitrary to the extent it provides "as and when supply through pre-payment meter is provided by the license" although all the provisions of the Electricity Act, 2003 have been enforced w.e.f. 10.06.2003.

(iv) Issue a writ, order or direction in the nature of mandamus directing respondents to supply electricity to the petitioner by installing pre-payment meter as has been provided under section 47 (5) of the Act, 2003, and be further restrained from requiring the petitioner to pay any amount of security under the provisions of repealed Act.

(v) Issue writ, order or direction in the nature of mandamus directing the respondents to refund, credit or adjust the amount of security already paid to the respondents amounting to Rs. 41,65,000/- along with the interest @ 12% p.a. as contained in section 47(4) of the Act, 2003, in future consumption bills."

3. Having gone through the entire writ petition, we do not find any ground entitling the petitioner for grant of any of above reliefs. No interference, therefore, is called for.

4. Dismissed.

5. Interim order, if any, stands vacated.

Order Date :- 31.5.2016

Pravin